

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-30

Served: April 24, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On January 26, 2026, the initial Scheduling Order issued in this proceeding. On April 6, 2026,¹ the parties jointly moved to amend the Scheduling Order. On April 24, 2026, the parties filed a second Joint Status Report² (“JSR 2”) detailing their progress with discovery including the production of documents/ESI by Complainant on April 7, 2026, with the expectation of second and third productions “in the coming days.” JSR 2 at 1. It does not appear that Respondent has produced any documents or ESI yet, but the status report indicates that Respondent is currently “considering as many as 1.4 million documents for relevancy.” *Id.* at 1-2.

The parties jointly move for a 60-day extension of the remaining discovery and briefing deadlines established in the January 26, 2026, Scheduling Order. While it is concerning that Respondent has not started producing documents or ESI, the parties indicate that they have a follow up conference scheduled with CADRS on May 14, 2026, and they have been working cooperatively by establishing an ESI Protocol and submitting a proposed Protective Order that was adopted as modified. The proposed extension of the discovery schedule is reasonable and is adopted, but Respondent is **ORDERED** to begin rolling productions of documents and ESI as soon as possible, and no later than May 11, 2026. Accordingly, it is **FURTHER ORDERED** that the parties follow this schedule:

¹ While the motion is dated April 3, 2026, a Friday, it was filed at 8:34 pm. The parties should file motions—particular those that impact scheduling order deadlines within 7-days of the date of the motion—during regular business hours.

² The second JSR was due on April 17, 2026; the parties did not address why they filed it a week after the date set in the Scheduling Order. In the future, late filings may be rejected unless accompanied by a request to accept a late filing, and an explanation of why it is late. In addition, the parties are reminded that similarly named filings should be sequentially numbered, such as Second Joint Status Report, Third Joint Status Report, or Joint Status Report 1, Joint Status Report 2, etc. *See* Initial Order at 4.

June 9, 2026	Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories
June 9, 2026	Substantial completion of production of documents and ESI pursuant to initial requests
June 17, 2026	Parties file Joint Status Report 3 regarding status of discovery
July 10, 2026	Complete depositions of fact witnesses
July 10, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
July 22, 2026	Disclosure of initial expert reports, if any
July 31, 2026	Disclosure of rebuttal expert reports, if any
August 12, 2026	Complete expert depositions
August 12, 2026	Close of discovery
September 9, 2026	Complainant's Brief, proposed findings of fact, appendix due
October 8, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
October 21, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due

If the parties have unresolved disputes regarding initial requests for production, ESI, or interrogatories that they intend to submit by the June 9, 2026, deadline, they must first request a status conference by emailing me at Judges@FMC.gov.


 Linda S. Harris Crovella
 Administrative Law Judge